

25NNCV08797 25NNCV08797

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Case Number: 25NNCV08797 Hearing Date: September 8, 2026 Dept: X

#14 - FRANCESCA LEIGH vs FIRST CREDIT BANK, et al.

CASE

MANAGEMENT CONFERENCE

On its own motion, the Case Management Conference is continued to
December 8, 2026 at 8:30 a.m. in Department X.

DEFENDANT WELLS FARGO'S DEMURRER
TO FAC

Plaintiff Francesca

Leigh alleges a single cause of action for breach of contract against First Credit Bank and Wells Fargo Bank, N.A. The First Amended Complaint alleges that Plaintiff entered into a certificate-of-deposit agreement with First Credit Bank on December 14, 2023; the certificate's terms required the assets to remain in the account for one year; First Credit Bank permitted Wells Fargo to seize Plaintiff's assets before that term expired; and First Credit Bank then closed the account. Plaintiff seeks \$850,000, together with physical and emotional-distress damages for allegedly egregious and deceitful conduct.

Previously, the

Court sustained both Defendants' demurrers to the original Complaint with leave to amend. (5/21/26 Minute Order.) The prior ruling explained that any amended complaint must separately identify the basis for liability against each Defendant and must not rely on undifferentiated allegations concerning the two financial institutions.

Wells Fargo now

demurs, asserting that the First Amended Complaint fails to state a cause of action against Wells Fargo and is uncertain.

Tentative Ruling

Defendant Wells

Fargo Bank, N.A.'s demurrer to the First Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

Legal Authority and Analysis

A demurrer should be sustained only where the defects appear

on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, et seq.) As is relevant here, a court should sustain a

demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id.

§ 430.10, subd. (e).) As the Supreme

Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: "We treat the

demurrer as admitting all material facts properly pleaded, but not contentions,

deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable

interpretation, reading it as a whole and its parts in their context." (Id., at p. 318; see also *Hahn v.*

Mirida (2007) 147 Cal.App.4th 740, 747 ["A demurrer tests the pleadings

alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects

appear on the face of the pleading or are judicially noticed. [Citation.]")

"A demurrer for uncertainty is strictly construed, even

where a complaint is in some respects uncertain, because ambiguities can be

clarified under modern discovery procedures." (*Khoury v. Maly's of Cal., Inc.* (1993)

14 Cal.App.4th 612, 616.) Such demurrers

"are disfavored, and are granted only if the pleading is so incomprehensible

that a defendant cannot reasonably respond." (*Mahan v. Charles W. Chan Insurance Agency,*

Inc. (2017) 14 Cal.App.5th 841, 848.)

The First Amended Complaint Does Not State a Contract

Claim Against Wells Fargo

To plead breach of

contract, a complaint must allege facts showing (1) the existence of a

contract, (2) plaintiff's performance or excuse for nonperformance, (3)

defendant's breach, and (4) resulting damages to plaintiff. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821; Aton Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230 [listing the same elements for breach of an oral contract].)

The amended pleading

identifies a contractual relationship between Plaintiff and First Credit Bank, not between Plaintiff and Wells Fargo. Its only material allegation concerning Wells Fargo is that First Credit Bank allowed Wells Fargo to seize assets from the certificate of deposit before its one-year term expired. The First Amended Complaint does not identify any agreement between Plaintiff and Wells Fargo, state whether such an agreement was written, oral, or implied, or plead its relevant terms. It also does not allege Plaintiff's performance under a Wells Fargo agreement or identify any contractual promise Wells Fargo failed to perform. The assertion that Wells Fargo "seized" assets is a characterization of conduct, not an allegation identifying a contractual duty and its breach.

The alleged one-year

term does not cure this deficiency. That term is attributed to the First Credit Bank certificate of deposit. It does not establish that Wells Fargo was a party to that agreement or assumed any obligation under it. The Court cannot infer contractual terms or duties that Plaintiff has not pleaded.

Plaintiff's

opposition refers to intentional torts, misrepresentation, and allegedly deceitful conduct by both Defendants. Those theories are not pleaded as causes of action in the First Amended Complaint and cannot supply the missing elements of the contract claim on demurrer. Accordingly, the demurrer is sustained for failure to state a cause of action.

Claimed Physical and Emotional-Distress Damages

The First Amended

Complaint pleads only breach of contract and then prays for physical and emotional-distress damages for alleged egregious and deceitful conduct. It does not plead facts connecting any physical injury to Wells Fargo's alleged conduct or establishing an independent tort duty and breach.

The economic loss

rule prevents tort recovery for "purely economic losses," meaning financial

harm unaccompanied by physical or property damage.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) This is because “conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law.” (Erich v. Menezes (1999) 21 Cal.4th 543, 551.) The certificate-of-deposit transaction alleged here is an ordinary financial arrangement. The request for physical and emotional-distress damages therefore does not cure the absence of a pleaded contractual duty or breach by Wells Fargo.

Leave to Amend

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (Schifando v. City of Los Angeles (2002) 31 Cal.4th 1074, 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (Krawitz v. Rusch (1989) 209 Cal.App.3d 957, 967.)

The prior ruling expressly directed Plaintiff to identify separately the basis for each Defendant’s liability. However, the First Amended Complaint still does not identify a contract with Wells Fargo, any relevant contractual terms, Plaintiff’s performance, or a contractual breach by Wells Fargo. Plaintiff’s opposition does not identify additional facts that could cure those defects. Because Plaintiff has already received leave to amend and has not demonstrated a reasonable possibility of stating a contract claim against Wells Fargo, further leave to amend is not warranted.

Wells Fargo Bank, N.A.’s demurrer is SUSTAINED WITHOUT LEAVE TO AMEND for failing to state a cause of action. The First Amended Complaint remains only against non-demurring Defendant First Credit Bank.

Moving party is to give notice and submit and service an Order of Dismissal for the Court.